

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 09, 2026
8:30 a.m.

5. MATTHEW MCGARRY V. ALLY HOFFMAN

25FL1256

This matter is before the court for hearing of two separate Requests for Orders (RFO), one filed by the Petitioner on July 29, 2026, and the other filed by the Respondent on September 04, 2026.

Petitioner's RFO Filed July 29, 2026

On July 29, 2026, Petitioner filed an RFO to modify child custody and visitation, as well as child support, for the parties' minor child, MH (age 11 months).¹ The court did not refer the parties to CCRC because the previous CCRC report was issued within the past six months on April 17, 2026. (Local Ct. R. 8.10.01.) Petitioner concurrently filed with his RFO a current Income and Expense Declaration (I&E).

Proof of service filed August 26, 2026, shows the RFO and I&E were both personally served upon Respondent that same day. This is untimely service because it provides only nine court days' notice. Code of Civil Procedure section 1005 requires 16 court days' notice.

Nonetheless, both Respondent and the Department of Child Support Services (DCSS) filed responsive pleadings. Based on these filings, the court deems the parties to have waived any defect in service of the RFO.

On August 28, 2026, DCSS filed two separate Responsive Declarations, both indicating that DCSS is providing child support enforcement services in this case, and both requesting that the issue of child support be continued to the court's DCSS calendar (third Monday of each month) following resolution of the child custody and visitation issues. Proof of service filed September 03, 2026, shows the Responsive Declaration was served upon both parties via mail on September 02, 2026.

On September 01, 2026, Respondent filed a Responsive Declaration and current I&E, copies of which were personally served upon Respondent that same day per the proof of service, also filed September 01, 2026.

On September 03, 2026, Respondent filed an ex parte application for temporary emergency orders, which the court granted on September 04, 2026, as follows: Respondent shall have sole temporary physical custody and Petitioner's visitation is suspended until further order of the court.

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¹ Petitioner filed his RFO shortly after the court issued custody and visitation orders on July 22, 2026, at which time, the court also set a review hearing for October 14, 2026, which remains on calendar.

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Respondent's RFO Filed September 04, 2026

On September 04, 2026, Respondent filed an RFO seeking to permanently suspend Petitioner's visitation. The RFO included a request for order shortening time, which the court granted, so that the issue may be heard concurrently with Petitioner's RFO filed July 29, 2026. The court ordered Respondent to serve the RFO no later than September 08, 2026. The court also ordered that the Temporary Emergency Orders issued September 04, 2026 (discussed above in the previous section herein) apply to this proceeding and must be served with Respondent's RFO.

TENTATIVE RULING #5: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, SEPTEMBER 09, 2026, IN DEPARTMENT 12 FOR ORAL ARGUMENT REGARDING TEMPORARY VISITATION FOR PETITIONER PENDING THE REVIEW HEARING SET FOR 8:30 A.M., WEDNESDAY, OCTOBER 14, 2026, IN DEPARTMENT 12 AND FOR POSSIBLE RE-REFERRAL TO CCRC.